

GZ: 2022-0.502.311 dated July 29, 2022 (Case number: DSB-D124.0123/22)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION ON THE COMPLAINT RULING

The Data Protection Authority decides in the data protection complaint case of Ulrich A***, MBA ***, (original complainant), dated January 23, 2022, against the N*** school, Command (BMLV) (original respondent) due to alleged violation of the right to confidentiality following a complaint from the N*** school, Command (BMLV) dated July 8, 2022, to the Federal Administrative Court regarding the amendment of the decision dated June 8, 2022, with the file number 2022-0.204.494; (AZ: D124.0123/22) as follows:

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The complaint is upheld, and the decision dated June 8, 2022, with the file number 2022-0.204.494; D124.0123/22, is amended to read as follows:

The Data Protection Authority decides on the data protection complaint of Ulrich A***, MBA *** (complainant) dated January 23, 2022, against the N*** school, Command (BMLV) (respondent) due to alleged violation of the right to confidentiality as follows:

The complaint is upheld, and it is determined that the respondent has violated the complainant's right to confidentiality by including the result protocols of the first parts of the complainant's employee discussions from the years 2006, 2007, 2008, and 2009 in the complainant's small personnel file.

Legal Basis: Art. 5 para. 1, Art. 6 para. 1, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and 2, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 1 para. 1 and 45a of the Civil Servants Act 1979 (BDG 1979), Federal Law Gazette No. 333/1979 as amended; §§ 7, 11, 14 para. 1, 27 of the Administrative Court Procedure Act – VwGVG, Federal Law Gazette I No. 33/2013 as amended; Art. 130 para. 1 No. 1 of the Federal Constitutional Law (B-VG), Federal Law Gazette No. 1/1930 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. With the contested decision dated June 8, 2022, the authority granted the data protection complaint of the original complainant dated January 23, 2022, and determined that the original respondent had violated the complainant's right to confidentiality by including result protocols of the first part of employee discussions as well as a document of restricted confidentiality level in the personnel file.

2. The now complainant filed a complaint against the decision of the Data Protection Authority dated June 8, 2022, with a letter dated July 8, 2022, and summarized that the authority had exceeded the scope of the complaint as determined by the submissions of the original complainant. The original complainant had only objected to the inclusion of result protocols of the first part of employee discussions in the personnel file, but not to that of a document of restricted confidentiality level.

Although the original complainant had criticized the custody of the document as unlawful in a letter to the now complainant, as it was being stored in a non-lockable piece of office furniture contrary to the confidentiality regulations of the BMLV, it was not within the authority's jurisdiction to review the custody of documents according to the internal confidentiality regulations, and this circumstance had not been raised by the original complainant in his complaint before the authority. Although the now complainant had referred to this in her statement in the proceedings before the authority. The document in question of restricted confidentiality level, according to the original complainant, was a performance evaluation concerning him, indicating personnel number, period, and detailed assessment of his professional and methodological competence as well as his social competence.

Furthermore, the retention of the personal data contained in this document was justified according to §

280 para. 2 and 3 BDG 1979. The authority also incorrectly determined that the now complainant had destroyed the document in question. However, it had not been destroyed due to existing retention obligations and had been included in the personnel file based on the mentioned legal basis. The authority also incorrectly represented the submissions of the now complainant.

B. Subject of the Complaint

Based on the submissions of the current complainant, it follows that the subject of the complaint regarding the contested preliminary decision is the question of whether the authority in question correctly determined in the contested decision that the current complainant violated the original complainant's right to confidentiality by attaching the result protocols of the first parts of employee discussions of the (original) complainant from the years 2006, 2007, 2008, and 2009, as well as a document classified as "restricted" to the small personnel file of the original complainant, or whether the authority exceeded the scope of examination determined by the original complaint dated January 23, 2022.

C. Findings of Facts

1. The authority in question bases its findings on the submissions and the procedural course described under point A.

2. The original complainant is in a public law employment relationship with the Federal Army. On November 15, 2021, he reviewed his small personnel file, which is kept at the command of the N*** school at **/****.

The following documents were at least until November 15, 2021, in the small personnel file of the original complainant:

- Employee Discussion: Result Protocol Part 1 dated **/**.2006
- Employee Discussion: Result Protocol Part 1 dated **/**.2007
- Employee Discussion: Result Protocol Part 1 dated **/**.2008
- Employee Discussion: Result Protocol Part 1 dated **/**.2009
- A document classified as "restricted" regarding GZ: *86**2/19-****/201* (1)

3. After becoming aware that the aforementioned documents were included in his small personnel file, the original complainant contacted the current complainant by letter dated November 18, 2021. In this letter, the original complainant also raised a violation of the internal confidentiality regulations of the Federal Ministry of Defense.

4. The original respondent then informed the current complainant by letter dated November 24, 2021, that it did not consider there to be any reportable violation of the protection of personal data in the sense of Art. 33 GDPR.

5. The aforementioned documents, with the exception of the document classified as "restricted" regarding GZ: *86**2/19-****/201* (1), were removed and destroyed by the original respondent from the small personnel file of the original complainant no later than November 24, 2021.

6. The document classified as "restricted" regarding GZ: *86**2/19-****/201* (1) is still recorded in the personnel file of the original complainant. This document is a performance evaluation of the original complainant.

Assessment of Evidence: The findings made in this regard are based on the consistent submissions of the parties involved in the proceedings and are largely undisputed. The finding that the document classified as "restricted" regarding GZ: *86**2/19-****/201* (1) is a performance evaluation of the original complainant is based on the supplementary submissions made by the current complainant in the complaint against the decision.

D. From a legal perspective, it follows:

On the Admissibility of the Complaint Decision

The contested decision was delivered to the current complainant on June 14, 2022, as evidenced by email. The complaint against the decision, which was received by the authority in question on July 8, 2022, was filed within the deadline and is therefore admissible.

Thus, it is at the discretion of the authority in question, within the framework of the preliminary proceedings according to § 14 Abs. 1 VwGVG, to revoke, amend, or reject the complaint within a

period of two months. In this regard, the authority in question must review the complaint based on the declaration regarding the scope of the appeal according to § 27 VwGVG.

On the Granting of the Complaint

According to Art. 77 Abs. 1 GDPR, every affected person has the right to lodge a complaint with a supervisory authority if they believe that the processing of their personal data violates the GDPR.

According to § 24 Abs. 1 DSG, every affected person has the right to lodge a complaint with the Data Protection Authority if they believe that the processing of their personal data violates the GDPR or § 1 or Article 2 of the 1st main part of the DSG.

An affected person must provide sufficient information in a complaint to enable the supervisory authority to understand the manner of processing the personal data and the violation of the provisions at least.

to be traced (cf. Schweiger in Knyrim, DatKomm Art 77 GDPR (as of December 1, 2018, rdb.at)).

In cases bound by application, the application not only obliges the authority to conduct the administrative procedure, but it is also a prerequisite for the decision and simultaneously creates the substantive legal basis for the issuance of the decision. Accordingly, the content of such an application constitutes and limits the subject matter of the administrative procedure, i.e., the (administrative) "matter" in the sense of §§ 8, 66 para. 4 and § 68 para. 1 AVG.

For a comprehensive examination of the data protection complaint of the complainant regarding possible legal violations, Art. 77 GDPR leaves no room (cf. decision of the BVwG of May 17, 2022 GZ: W214 2233398-1/12E).

The original complainant objected in his complaint of January 23, 2022, as correctly stated by the now-current complainant, solely to the inclusion of result protocols from the first part of employee discussions in his personnel file. In light of the above statements, the initial decision had to be adjusted.

According to § 1 para. 1 DSG, everyone has the right to confidentiality of personal data concerning them, provided that there is a legitimate interest in it. The existence of such an interest is excluded if data, due to their general availability or because they cannot be traced back to the data subject, are not subject to a confidentiality claim.

In the present case, the scope of application of § 1 para. 1 DSG is opened, as the information according to Art. 4 no. 1 GDPR relates to the original complainant. Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG if personal data is used in the vital interest of the data subject, if the data subject has given their consent (or in the terminology of the GDPR: approval), if there is a qualified legal basis for the use, or if the use is justified by overriding legitimate interests of a third party.

The processing of personal data must, regarding its permissibility, meet at least one of the conditions listed in Art. 6 para. 1 GDPR and, on the other hand, comply with the principles for processing established in Art. 5 para. 1 GDPR (cf. regarding the comparable legal situation under Directive 95/46/EC the judgment of the CJEU of May 13, 2014, [Google Spain] C-131/12 para. 71 with references).

In the present case, there is no consent (or in the terminology of the GDPR: approval) from the original complainant, the processing did not occur in his vital interest, and the original respondent (as the public sector controller, cf. § 1 para. 1 DSG) cannot rely on overriding legitimate interests.

Regarding the withdrawal of the complaint of the original complainant

Concerning the objection of the original respondent, according to which the original complainant would have been rendered harmless by the destruction of the protocols in accordance with § 24 para. 6 DSG, it should be noted that a violation of the right to confidentiality has been asserted, which makes the subsequent deletion of the documents relevant to the proceedings – contrary to the view of the original respondent – irrelevant.

The Data Protection Authority maintains in its constant case law that the procedural privilege of the possibility of discontinuing a procedure according to § 24 para. 6 DSG is only applicable to rights that require an application – to which § 1 para. 1 DSG does not belong – and this has been confirmed multiple times by the Federal Administrative Court (cf. for example, the decision of July 30, 2021,

W211 223 5654-1/10E).

Regarding the existence of a qualified legal basis for processing

Applicable legal provisions:

§ 1 para. 1 BDG 1979 reads with heading as follows:

GENERAL PART

Section 1

SCOPE OF APPLICATION

§ 1. (1) This federal law applies to all employees who are in a public law employment relationship with the federal government. They are referred to as "civil servants" hereinafter.

§ 45a BDG reads with heading as follows:

Employee Discussion

§ 45a. (1) The supervisor directly responsible for technical supervision (supervisor) must conduct an employee discussion with each of their employees at least once a year.

(2) The employee discussion consists of two parts:

1. a) Discussion of the work objectives of the organizational unit and its tasks for the following year; based on this, the essential contribution of the employee to the fulfillment of the tasks is to be agreed upon.

b) If agreements have already been made for the past year, they serve as the basis for discussing the fulfillment of the tasks.

2. Agreement on measures that are necessary and appropriate for improving or maintaining the performance of the employee and which should also be made available to the employee within the framework of their longer-term professional development; listing

(3) The employee discussion is to be conducted exclusively between the supervisor and their employee.

(4) The results of the two parts of the employee discussion are to be briefly summarized in writing by one of the discussion partners during the conversation and signed by both discussion partners. If this is not possible due to a lack of agreement, a final discussion appointment is to be scheduled, to which each of the discussion partners may invite a person of their trust, who can be

1. in domestic offices, an equal treatment officer or staff representative or disability representative,
2. in foreign offices, a member of the respective office.

(5) One copy of the result of the first part remains with the employee and with their supervisor. These copies may not be shared.

(6) One copy of the result of the second part of the employee discussion remains with the employee and with their supervisor. A further copy is to be forwarded to the personnel management office and added to the personnel file.

In the matter:

The original complainant is, as can be seen from the findings, a civil servant in a public law employment relationship with the federal government, and the provisions of the BDG 1979 apply (cf. § 1 para. 1 BDG 1979). Due to the nature of the employment relationship of the original complainant, the original respondent, as the responsible party in the public sector, requires a legal basis for processing personal data or for intervening in the fundamental right to data protection in accordance with § 1 para. 1 DSG.

Section 5 of the BDG 1979 establishes the duties of the employer and regulates § 45a of the same law the obligation to hold employee discussions. According to § 45a para. 1, the supervisor directly responsible for the technical supervision (supervisor) must conduct an employee discussion with each of their employees once a year. This consists, according to para. 2 of the same law, of two parts. The employee discussion is to be conducted, according to para. 3 of the same law, exclusively between the supervisor and their employee. From these provisions, it follows that the employee discussion is a confidential conversation (cf. decision of the BVwG of April 3, 2017, GZ W136 2135730-1).

The results of the two parts of the employee discussion are to be briefly summarized in writing by one

of the discussion partners during the conversation and signed by both discussion partners. According to § 45a para. 5 of the same law, one copy of the result of the first part remains with the employee and with their supervisor and these copies may not be shared.

The legislative materials state: "In the interest of openness in the conduct of the conversation, the summary of this part of the conversation remains with the discussion partners. The involvement of trusted persons is therefore only provided for in a very limited manner" (ErlRV 1577 BlgNR 18. GP 160 f.).

According to para. 6 of the same law, one copy of the result of the second part of the employee discussion remains with the employee and with their supervisor and a further copy is to be forwarded to the personnel management office and added to the personnel file.

As jointly stated by the parties to the proceedings, there was therefore no legal basis for adding the results of the first part of the employee discussions in question to the ("small") personnel file.

Whether one or possibly several unauthorized recipients actually accessed the personal data of the original complainant may remain undecided, as the mere fact of the unlawful inclusion of the result protocols of the first part of the employee discussions in the personnel file constitutes a violation of the fundamental right to confidentiality (cf. the decision of the BVwG of September 3, 2019, GZ W214 2219944-1/9E, according to which neither § 1 para. 2 DSG nor Art. 4 no. 2 in conjunction with Art. 6 GDPR refers to a certain "minimum processing").

In contrast, it was not necessary in the present case to issue an official order for the deletion of the result protocols.

As can be seen from the findings, the result protocols of the first part of the employee discussions were removed from the small personnel file of the original complainant and destroyed.

The legality of the retention as well as the inclusion of the document classified as "restricted," GZ: *86**2/19-****/201* (1) in the personnel file was not to be decided, especially since this, as stated above, was not the subject of the complaint of the original complainant.

It was therefore to be decided accordingly.